PRACTICE EXAM 35 / EXAM SET 05

Domain 7: Medical Law and Ethics

7 scored questions	4 answer choices per question	Answer key + explanations included

Instructions

Choose the single best answer (A, B, C, or D) for each question. Mark your responses before checking the answer key and detailed explanations at the end of this document. These practice questions are not official NHA examination items.

QUESTIONS

Q01 | Privacy Confidentiality and Information Release

SCENARIO An unfamiliar caller says they work for a patient's health insurer and requests office records for a claim. The caller correctly states the patient's name, birth date, and policy number but asks that the records be sent to a newly supplied address. The caller's identity and authority have not been verified. Clinic policy requires independent verification through an established insurer contact and confirmation of a permitted disclosure basis before records are released.

Which action appropriately addresses the unresolved verification?

A. Release the records because knowing the policy number establishes the caller's authority.

B. Release a short clinical summary because a summary does not require recipient verification.

C. Ask the caller to repeat the birth date and then use the newly supplied destination.

D. Use the clinic's independent verification process before releasing information to the requested destination.

Q02 | Consent Patient Rights and Directives

SCENARIO A patient arrives for a nonurgent office procedure after taking a prescribed sedating medicine at home. The patient is breathing normally and responds to conversation but repeatedly falls asleep and cannot explain what procedure is planned. The procedure-specific consent discussion has not yet occurred. Clinic policy assigns assessment of decision-making capacity and the substantive consent discussion to the responsible clinician. No emergency requires the procedure to begin now.

What should the medical assistant do before seeking a consent signature?

A. Obtain the signature while the patient is briefly awake and complete the discussion afterward.

B. Notify the clinician of the observations and pause the consent process pending the clinician's assessment.

C. Ask the accompanying friend to sign because drowsiness automatically gives the friend decision-making authority.

D. Document that capacity is permanently absent and cancel future appointments for the patient.

Q03 | Scope Ethics and Mandatory Reporting

SCENARIO The clinic's legal reviewer issues a preservation notice covering specified patient records involved in pending litigation. Some of those records are already queued for routine destruction under the clinic's normal retention schedule. The preservation notice expressly suspends destruction of the covered records until the reviewer releases the hold. The assistant is responsible for coordinating the destruction queue with the records team.

Which action follows the applicable record-preservation instruction?

A. Continue routine destruction because the normal retention interval has ended.

B. Delete the originals after retaining a brief summary of the patient's care.

C. Suspend destruction of the covered records and notify the records team and legal reviewer of the queued items.

D. Ask the patient whether the clinic should follow the preservation notice or the retention schedule.

Q04 | Privacy Confidentiality and Information Release

SCENARIO A verified patient requests an electronic copy of the patient's own routine records by unencrypted email. The file is readily producible, no access exception or additional restriction applies, and the clinic can send it without an unacceptable risk to its systems. Staff have briefly explained the transmission risk, and the patient confirms that this remains the preferred method. The address has been checked, and the assistant is authorized to complete this access request through the clinic's procedure.

Which action correctly respects this individual access request?

A. Send the copy by the requested method through the approved process and document the warning and confirmed preference.

B. Require the patient to use the portal because HIPAA prohibits providing personal records by unencrypted email.

C. Require an in-person pickup because accepting transmission risk does not permit electronic delivery.

D. Send the records to a relative's encrypted account instead, without asking the patient about that destination.

Q05 | Consent Patient Rights and Directives

SCENARIO An older adult with a history of schizophrenia has decided to accept a recommended office treatment. The clinician has documented that the patient currently has decision-making capacity for this choice. A verified health care power of attorney names the patient's sister as agent only when the patient lacks that capacity; the document does not give her current decision-making authority under the applicable law. The sister asks the assistant to cancel the patient's choice because she prefers another option. There is no guardian.

Whose decision should guide the current consent process under these verified facts?

A. The sister's decision, because being named in the document overrides the patient's current choice.

B. A joint decision requiring the sister's approval because the patient has a psychiatric diagnosis.

C. The patient's decision, with the clinician continuing the consent process and addressing any remaining questions.

D. The assistant's decision after comparing the patient's and sister's preferred treatments.

Q06 | Scope Ethics and Mandatory Reporting

SCENARIO During an assigned inventory check, an assistant sees a coworker place a sealed package of a controlled medication from clinic stock in a personal backpack. The inventory log lists the package as administered, but the listed encounter had been canceled. These observations raise concern about possible diversion; they do not establish a final finding of theft. Clinic policy requires prompt factual reporting to the designated supervisor and preservation of relevant records. Designated officials coordinate investigation and any required outside reports.

Which response appropriately addresses the suspected concern within the assistant's role?

A. Search the coworker's backpack to confirm the concern before making any report.

B. Promptly report the observations and log discrepancy to the designated supervisor without altering the records.

C. Warn other staff that the coworker is a confirmed thief so they can watch future medication handling.

D. Change the log to match the canceled encounter and wait to see whether the coworker returns the package.

Q07 | Scope Ethics and Mandatory Reporting

Which statement correctly describes the relationship between CCMA certification and authorization to perform clinical tasks?

A. Certification does not replace applicable law, task-specific training, or required employer authorization and supervision.

B. Certification authorizes independent clinical practice when an employer does not provide written task restrictions.

C. Certification makes a procedure permissible whenever the assistant has observed a licensed clinician perform it.

D. Certification permits an employer to delegate a task even when applicable law prohibits that delegation.

ANSWER KEY & EXPLANATIONS

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01 D	02 B	03 C	04 A	05 C	06 B
07 A					

DETAILED EXPLANATIONS

Q01 | Correct answer: D

Use the clinic's independent verification process before releasing information to the requested destination.

Knowing patient identifiers does not by itself establish the unfamiliar caller's identity or authority to receive records. The assistant should follow the stated verification process and establish a permitted disclosure basis before sending information to the newly supplied destination. A claim-related purpose can support appropriate disclosures, but it does not remove the need to resolve this verification concern.

Q02 | Correct answer: B

Notify the clinician of the observations and pause the consent process pending the clinician's assessment.

The patient's drowsiness and inability to explain the planned procedure raise a concern requiring the responsible clinician's assessment before proceeding with consent. A signature obtained during a brief period of wakefulness would not establish an informed, voluntary decision. The assistant reports observations rather than independently declaring incapacity, and a friend's presence does not automatically establish surrogate authority.

Q03 | Correct answer: C

Suspend destruction of the covered records and notify the records team and legal reviewer of the queued items.

The specific preservation notice suspends routine destruction for the identified records, even if they otherwise meet the clinic's usual retention schedule. Preserving only a summary does not follow the instruction to retain the covered records. The assistant should coordinate compliance with the designated reviewer rather than independently decide the hold's legal merits or ask the patient to override it.

Q04 | Correct answer: A

Send the copy by the requested method through the approved process and document the warning and confirmed preference.

Under the facts given, the patient may receive a personal record copy by unencrypted email after being warned of the transmission risk and confirming that preference. The assistant should use the verified address, follow the access procedure, and document the discussion rather than impose a portal or pickup requirement. This individual access request does not create general permission to send other patients' information through unapproved channels.

Q05 | Correct answer: C

The patient's decision, with the clinician continuing the consent process and addressing any remaining questions.

The clinician has established current decision-making capacity, and the verified document does not give the sister authority to replace this patient's decision in the present circumstances. A psychiatric diagnosis alone does not override the clinician's documented capacity finding or require a relative's approval. The assistant should support the patient's participation and the clinician's consent process without selecting treatment or activating surrogate authority independently.

Q06 | Correct answer: B

Promptly report the observations and log discrepancy to the designated supervisor without altering the records.

The observed package handling and conflicting inventory entry justify a factual report under the stated policy without requiring the assistant to prove theft. Preserving the records allows designated officials to investigate and determine any external reporting obligations. Independently searching personal belongings, spreading accusations, or changing the log would exceed the assistant's assigned response and could compromise the review.

Q07 | Correct answer: A

Certification does not replace applicable law, task-specific training, or required employer authorization and supervision.

CCMA certification is a professional credential rather than blanket permission to practice independently or perform every clinical task. The applicable jurisdiction's requirements and the task's training, authorization, and supervision conditions still govern what the assistant may do. Neither observing a procedure nor receiving an employer instruction overrides a legal prohibition on delegation.

End of Practice Exam